

22VECV00823 22VECV00823

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-09-11

Motion: PLAINTIFF'S MOTION TO VACATE DISMISSAL

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Case Number: 22VECV00823 Hearing Date: September 11, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

MOKHIM RASOOLI,

Plaintiff,

vs.

MARK CARILLO, et al.,

Defendants.

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CASE NO: 22VECV00823

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION
TO VACATE DISMISSAL

Dept. U

8:30 a.m.

September 11, 2026

I.

BACKGROUND

On

June 17, 2022, Plaintiff Mokhim Rasooli ("Plaintiff") filed his original complaint against Defendants Mark Carillo ("Carillo"), Yi Sun Kim ("Kim"), and James Felton ("Felton"), alleging: (1) breach of contract; (2) fraud – failure to tell the truth; and (3) bankruptcy.

Plaintiff has previously been represented by counsel but is now self-represented.[1]

On

January 3, 2023, the Court sustained, with leave to amend, Felton's demurrer to Plaintiff's original complaint.

On

June 14, 2023, Plaintiff filed his first amended complaint against Defendants Joseph A. Cardella ("Cardella"), Carillo, and Zeyad Elalami ("Elalami") without specifying any causes of action.

On

July 8, 2024, Plaintiff filed his second amended complaint (the "SAC") against Cardella, Carillo, and Elalami, alleging: (1) breach of contract against Elalami; (2) fraud against Elalami; and (3) common counts against Cardella and Carillo.

On

August 27, 2024, Cardella filed his answer to the SAC, asserting his general denial and several affirmative defenses.

Also on that date, a default was entered against Carillo.

On

March 3, 2025, the Court sustained, with leave to amend, Elalami's demurrer for sufficiency and uncertainty as to both causes of action alleged against him in the SAC. Plaintiff did not file a further amended complaint.

On

March 19, 2025, Plaintiff filed a request for dismissal of Elalami.

On

April 30, 2025, the Court set this case for trial on January 5, 2026.

On

October 24, 2025, Plaintiff filed a request for dismissal (with prejudice) of Cardella.

On

October 29, 2025, the Court set an OSC re: entry of judgment for November 24, 2025. The OSC was as to Defendant Carillo, who was in default and who was the sole remaining Defendant.

On

November 24, 2025, Plaintiff failed to appear on the OSC re: entry of judgment. The Court thereupon set an OSC re: dismissal for failure to prosecute for December 26, 2025.

On

December 2, 2025, at a non-appearance case review, the Court continued the hearing on the OSC re: dismissal for failure to prosecute to January 14, 2026.

On

December 10, 2025, Plaintiff filed a notice of substitution removing Mr. Mann as his counsel and stating that Plaintiff was representing himself.

On

December 23, 2025, Melvin Betnun filed a notice of substitution stating that he was replacing Mr. Mann as counsel. Mr.

Betnun's statement was incorrect to the extent that, in fact, Plaintiff Rasooli was in pro per at the time Mr. Betnun substituted in.

On

January 13, 2026, Mr. Betnun filed a request for default as to Mark Carillo for \$5 million. (While not germane to the current motion, the Court nonetheless notes that the operative SAC indicates \$30,000 paid to Mr. Carillo and Plaintiff's demand therein as to Mr. Carillo appears to be \$25,000.)

On

January 14, 2026, no one made an appearance at the hearing on the OSC re: dismissal for failure to prosecute. The Court thereupon dismissed this case without prejudice under Code of Civil Procedure section 583.410 and California Rules of Court, Rule 3.1340.

On

January 20, 2026, Plaintiff filed his motion to vacate and set aside the Court's dismissal of the case based on attorney error.

On

April 1, 2026, the Court granted Plaintiff's motion to set aside/vacate the dismissal of Mark Carillo. The Court vacated the January 14, 2026, dismissal of Mark Carillo.

On

April 29, 2026, the Court dismissed Mark Carillo without prejudice.

On

May 28, 2026, Plaintiff filed a motion to vacate and set aside the dismissal entered on January 14, 2026, and on April 29, 2026.

As

of 5:00 P.M. September 8, 2026, no opposition has been filed.

II.

LEGAL STANDARD

The Court

may, “upon any terms as may be just,” relieve a party “from a judgment, dismissal, order, or other proceeding taken against” the party through “mistake, inadvertence, surprise, or excusable neglect.” The application must be “accompanied by a copy of the answer or other pleading proposed to be filed” and “made within a reasonable time, in no case exceeding six months,” after the dismissal was taken. (Civ. Proc. Code § 473, subd. (b).)

The Court shall

vacate a resulting default, default judgment, or dismissal whenever the application is made within six months of entry, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to the attorney’s mistake, inadvertence, surprise, or neglect, unless the Court finds the dismissal was not in fact caused by the attorney’s fault. (Civ. Proc. Code § 473, subd. (b).)

III.

DISCUSSION

Plaintiff

moves to vacate the dismissal entered on January 14, 2026, and on April 29, 2026, pursuant to Code of Civil Procedure section 473, subdivision (b). Plaintiff argues both dismissals resulted from mistake, inadvertence, and excusable neglect of Plaintiff’s former counsel. Plaintiff contends his former counsel, substituted in during December 2025, relied on staff’s impression that a request for entry of default was required, however, the matter was already post-default and awaiting judgment. Plaintiff contends Carillo has never appeared in this action, no evidence has been lost, and liability has already been established by default, therefore Carillo will suffer no harm or prejudice if the dismissal is vacated.

The

January 14, 2026, dismissal of Carillo has already been vacated by a previously filed motion to set aside. The Court vacated the January 14 dismissal on April 1, 2026, finding that Plaintiff's former counsel's explanation as to his mistaken belief regarding request for entry of default led to the dismissal. (See 4/1/26 Minute Order.) Plaintiff's motion as to the January 14, 2026, dismissal is therefore moot.

Next,

the Court finds the instant motion is timely.

The motion was filed on May 28, 2026.

Measured against the April 29, 2026, dismissal, the application falls within the six-month outer limit that governs section 473, subdivision (b).

However,

Plaintiff fails to meet the requirements of section 473, subdivision (b). The April 29, 2026, dismissal was made pursuant to Code of Civil Procedure section 583.410 and California Rules of Court 3.1340 for failure to prosecute. (See 4/29/26 Minute Order.) Plaintiff asserts he and his former counsel did not move forward with this matter after Defendant threatened Plaintiff and his counsel with sanctions if they maintained the action. (Mot., p. 2.) Plaintiff argues his former counsel was "distracted" by Defendant's threats. (Mot., p. 3.)

These

asserted grounds all concern the conduct and state of mind of Plaintiff's former counsel; however, Plaintiff only submits his own declaration. Plaintiff's declaration does not competently establish counsel's reasons for failure to prosecute or that counsel's neglect was excusable. Further, Plaintiff's application is not accompanied by a copy of the answer or other pleading proposed to be filed, such as, as would be appropriate here, a default judgment package.

Plaintiff's

motion is denied without prejudice.

IV.

CONCLUSION

Plaintiff

Mokhim Rasooli's motion to set aside/vacate the dismissal of Mark Carillo entered on January 14, 2026, is DENIED as moot.

Plaintiff

Mokhim Rasooli's motion to set aside/vacate the dismissal of Mark Carillo entered on April 29, 2026, is DENIED without prejudice.

Plaintiff Mokhim Rasooli

is ORDERED to give notice.

DATED: September 11, 2026

Lee S. Arian

Judge

of the Superior Court

[1]

See *Harding v. Collazo* (1986) 177 Cal.App.3d 1044,

1056 (self-represented litigants held to same standards applied to licensed attorneys); see also *Monastero v. Los Angeles Transit Co.* (1955) 131

Cal.App.2d 156, 160-161 ("litigant is permitted to present his own case, but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts").